# DIRECTION

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|---|---|---|---|
| **Doc Type** | Form | **Issue Date** | 1 September 2021 |
| **Doc. No.** | SOP-APS-001 | **Eff. Date** | 1 September 2021 |
| **IP** | Food Safety Agency (Pty) Ltd | **Rev. Date** | 1 January 2023 |
| **Designed by** | N Bergh | **Revision** | V5 |
| **Approved by** | Chief Executive Officer | | |

| | |
|---|---|
| **Producer/Importer/Butcher/Retailer Facility** | Kwiksave Fresh and Frozen |
| **Owner / Manager / Representative** | Bonginkosi Ndlovu |
| **Physical Address** | 13B Devenish Street Polokwane |
| **E-Mail Address** | mcdevenish13b@gmail.com |
| **Contact Number** | 0636409143 |
| **Date of Visit** | 25/08/2025 |
| **Nature of Inspection** | Inspection |
| **Direction Reference Number** | Kwiksave Fresh and Frozen/143/25/08/2025/02 |

The products listed and described below and which have been marked or pointed out by me personally, are being sold / imported, are in contravention of Section 3 (1) of the Agricultural Production Standards Act, 1990(Act 119 of 1990), read in conjunction with the relevant regulations regarding the sale of products in terms of Section 15 of the Act.

☑ **DIRECTION:** You are hereby directed in terms of **Section 3A, (1) (b)** of the said Act to:

Rectify the non-conformity as mentioned below before or on **26/09/2025**

☐ **SEIZURE:** The owner or person in charge of the place, premise or conveyance failed to comply with the direction (Number: _____) issued in terms of section 3A (1)(b) of the said Act and thereby committing an offence in terms of section 11 (1)(d). The product is therefore seized by the Executive Officer: Agricultural Product Standards in terms of section 7 (1)(c) and 8 of the said Act with immediate effect.

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Nature of Direction: Marking Requirements / Container and Outer Containers

Rectify the non-conformity as mentioned below before or on: **26/09/2025**

## DEVIATIONS (NON-CONFORMITIES)

| Point | Product Name | Nature of Deviation from Regulation | Regulation Number |
|---|---|---|---|
| 1 | Kwiksave Fresh and Frozen Polokwane/Beef Banger | Marking Requirements - Name and Address | [Reg. 7(1)(c)] |
| 2 | Kwiksave Fresh and Frozen Polokwane/Beef Banger | Marking Requirements - Restricted Particulars (Section 6 of APS Act) | [Reg. 13] |

Comments (if found)

1. The physical address is not indicated.
2. The declaration of the "Mechanically Deboned Meat" on the ingredients creates a misleading impression regarding the composition of the product..

## ACTIONS AND REMARK

| REMARKS |
|---|
| Direction issued and discussed with Client |

Restricted Particulars (if found): Other

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**SIGNATURES**

| | | | |
|---|---|---|---|
| INSPECTOR NAME: | MOKGADI SELONE | OWNER / AUTHORISED MANAGER: | Bonginkosi Ndlovu |
| INSPECTOR SIGNATURE: | | OWNER / AUTHORISED MANAGER SIGNATURE: | |

Please note:

The butchery, abattoir, production plant, retailer, processing or repacking or importer, can apply for dispensation with the Executive Officer: Agricultural Product Standards Act at the Department of Agriculture, Land Reform and Rural Development (DALRRD) previously the Department of Agriculture, Forestry and Fisheries (DAFF).